

25VECV05187 25VECV05187

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV05187 Hearing Date: September 17, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Justin

Goldstein,

Plaintiff,

v.

FCA

US LLC

Defendant.

Case Number Department

25VECV05187 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Enforce Settlement

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Granted (entry of judgment)

I.

BACKGROUND

On

June 24, 2025, Plaintiff Justin Goldstein purchased a 2025 Jeep Wrangler vehicle. Plaintiff alleges the vehicle fails to accept electrical charging, thereby rendering it undriveable.

On

September 11, 2025, Plaintiff filed a complaint for Breach of Express and Implied Warranties. FCA US LLC answered the complaint on October 24, 2025

II.

LEGAL

STANDARD

Code of

Civil Procedure section 664.6:

If parties to pending litigation

stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6.)

Strict compliance with the

statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller

Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103

Cal.App.4th 30, 37.) Accordingly, “parties” under section 664.6 means the

litigants themselves, not their attorneys. (Levy v. Superior Court (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”).) Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.)

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (Weddington Prods., Inc. v. Flick (1998) 60 Cal.App.4th 793, 809.) When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (Id.) The court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (Id.; Terry v. Conlan (2005) 131 Cal.App.4th 1445, 1460; Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360; Fiore v. Alvord (1985) 182 Cal.App.3d 561, 565-566.) “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 994.)

III.

DISCUSSION

Plaintiff moves for “enforcement” of the settlement agreement itself, but no actual judgment was entered by the court or dismissal of the action pursuant to Code of Civil Procedure section 664.6 occurred. The court therefore considers the motion as one to enter judgment pursuant to the terms of settlement agreement. (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1185.)

The April 14, 2026 executed settlement agreement provides for a total payment of \$40,000. [Declaration of Erika Kavicky, Ex. A.] As of the August 11, 2026 filing date of the motion, the settlement remained unpaid. [Ibid., Ex. B-G.] Plaintiff seeks a \$5,300 penalty

based on \$50/day penalty for non-payment 106 days following acceptance, \$1,161.64 in prejudgment interest, and \$5,063 in attorney fees for the required motion. (Code Civ. Proc., § 871.20, et seq., Civ. Code § 3287.)

Defendant' opposition, which was filed late, represents that the \$40,000 payment was received by Plaintiff on August 28, 2026. Defendant therefore requests the court refrain from entering any judgment under section 664.6. Alternatively, Defendant requests denial or recalculation of any and all penalties. Defendant maintains prejudgment interest constitutes a duplicative recovery with the penalties, and the requested attorney fees are too high and unsupported. Finally, Defendant requests any settlement amount remain redacted from any order.

Plaintiff in reply denies the late payment renders the motion moot, and reiterates the request for prejudgment interest, penalties and fees.

“(g) The restitution payment and vehicle return procedures shall comply with all of the following conditions: ... (2) The defendant shall promptly process any agreed-upon motor vehicle restitution or replacement pursuant to this section and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee's counsel. The defendant's failure to do so shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise. The consumer shall comply in good faith with requests from the manufacturer for reasonable documentation required to complete the requested restitution or replacement of the motor vehicle. In the event the consumer fails to comply in good faith and delays the restitution or replacement, the manufacturer shall not be subject to the daily fifty-dollar (\$50) penalty.” (Code Civ. Proc., § 871.27, subd. (g)(2).)

The statute allows for assessment of penalties beginning on the 31st day following execution of any agreement by buyer. The settlement was executed on April 14, 2026, and effective on April 15, 2026. Payment was accepted on August 28, 2026. A total of 135 days lapsed. Deducting 30 days, this leaves a recoverable period of 105 days. When multiplied by \$50/day, the sum totals to \$5,250. The court awards this penalty.

The court finds no legally supported position for denial of prejudgment interest. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].) A party may recovery prejudgment interest in a Song-Beverly action. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 1004, 1011.) Prejudgment interest arises from the fixed sum due under the agreement. The penalty provision in section 871.27, subdivision (g) discourages dilatory conduct on the part of a manufacturer following acceptance of a settlement offer. (See Civ. Code, § 1794, subd. (c).) Recovery of contractual based prejudgment interest is not redundant with statutory penalties for non-compliance. (See Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 227.) Prejudgment interest for 105 days total \$1,150.68 (\$40,000 multiplied by 10% divided by 365 days multiplied by 105 days).

Defendant offers no challenge to the right to recover attorney fees, only the amount. The court finds the \$610 hourly fee for an experienced consumer litigator practicing in Los Angeles County reasonable and supported. Counsel requests 4.8 hours in expenses leading up to and the filing of the motion, with an additional 3.5 hours for the reply and appearance. The requested 8.3 hours appears excessive given exchange of emails and drafting of the motion and reply. The court awards 5 hours of time related to enforcement of the settlement agreement for a total fee recovery of \$3,050.

IV.

CONCLUSION

The motion to enter judgment pursuant to Code of Civil Procedure section 664.6 is granted. The court enters judgment reflecting the terms of the settlement agreement, \$1,150 in prejudgment interest, \$3,050 in attorney fees, and \$5,250 in statutory penalties. The request to withhold the settlement amount from any ordered judgment appears moot given the identification of the settlement amount in the motion, opposition and reply. Defendant filed no application to seal prior to the filing of the motion.

Plaintiff
to submit a judgment.

Dated: September

17, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court